

# Shahnaz Begum v. Purvanchal Vidhut Vitrana Nigam Ltd. and Another

High Court of Judicature at Allahabad · Division Bench · 5 December 2023 · 2023:AHC:230664-DB · Writ - C No. 38695 of 2023 · **Writ disposed; 6.5(b) application to be considered within a week.**

## HEADNOTE

Writ seeking deletion of an allegedly unissued connection was disposed of by consent. The pending request for copies of the application form and agreement is to be addressed, and any application moved under clause 6.5(b) of the U.P. Electricity Supply Code, 2005 within one week is to be considered expeditiously in accordance with law.

## FACTUAL SUMMARY

Shahnaz Begum petitioned the Allahabad High Court against Purvanchal Vidhut Vitrana Nigam Ltd. to delete connection No. 6964995000 from its record, saying the connection had never been issued. She confined the writ to consideration of her application under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. She had already represented to the competent authority, annexing a request to the Executive Engineer for copies of the connection application form and the agreement. The licensee's counsel did not oppose processing of a proper application in accordance with law.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.5(b)

consent disposal directing consideration of a clause 6.5(b) application

### HOLDING

Where the consumer confines the writ to consideration under clause 6.5(b) of the U.P. Electricity Supply Code, 2005, and the licensee consents, the writ is disposed of with a direction that an appropriate application moved under clause 6.5(b) within one week shall be considered expeditiously in accordance with law. The pending representation seeking copies of the connection application form and agreement is to be addressed first, so that the clause 6.5 application can be moved. ¶ 3-7

## PRINCIPLE TAGS

**clause-6.5-alternate-remedy-to-writ** The Court declined to keep the writ pending and, with counsel's consent, left the dispute over the connection entry to an application under clause 6.5(b), to be considered in accordance with law if moved within a week. ¶ 4-7

**clause-6.5-pending-representation-to-be-decided** The consumer's existing representation for copies of the application form and agreement (Annexure-2) is to be addressed so that an application under clause 6.5 can thereafter be moved. ¶ 5-6

## NOT DECIDED — NEGATIVE AUTHORITY

**NOT DECIDED — WHETHER CONNECTION NO. 6964995000 WAS ISSUED TO THE PETITIONER AND SHOULD BE DELETED FROM THE LICENSEE'S RECORD**

Left to consideration of an application under clause 6.5(b), if moved within a week. ¶ 2-7

